

TERMS AND CONDITIONS

Nelwa's Gelato & Academy Mobile Application

Effective Date: March 1, 2026

Last Updated: March 1, 2026

1. ACCEPTANCE OF TERMS

Welcome to Nelwa's! These Terms and Conditions ("Terms") govern your use of the Nelwa's mobile application ("App") and services provided by Nelwa's Gelato & Academy ("Nelwa's," "we," "us," or "our").

By downloading, accessing, or using the App, you agree to be bound by these Terms. If you do not agree, do not use the App.

2. DEFINITIONS

- **"User," "you," "your":** Any person who accesses or uses the App
 - **"Services":** All educational courses, content, consultations, and features provided through the App
 - **"Content":** All materials, courses, videos, text, images, and information available in the App
 - **"Account":** Your personal account created to access the Services
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3. ELIGIBILITY

3.1 Age Requirement

You must be at least 18 years old to use this App. By using the App, you represent that you are 18 or older.

3.2 Legal Capacity

You must have the legal capacity to enter into a binding contract under Tanzanian law.

3.3 Account Accuracy

You agree to provide accurate, current, and complete information when creating your account.

4. USER ACCOUNT

4.1 Account Creation

To access paid courses and features, you must create an account by providing:

- Valid email address or phone number
- Password
- Name and other required information

4.2 Account Security

You are responsible for:

- Maintaining the confidentiality of your password
- All activities that occur under your account
- Notifying us immediately of any unauthorized use

4.3 Account Termination

We reserve the right to suspend or terminate your account if:

- You violate these Terms
 - You engage in fraudulent activity
 - Your account has been inactive for an extended period
 - Required by law
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5. SERVICES PROVIDED

5.1 Educational Courses

We offer:

- **Free Home Ice Cream Making Course:** Introductory course at no cost
- **Soft Serve Starter Course:** Paid course for 50,000 TZS
- Additional courses and content as we develop them

5.2 Consultation Services

We offer personalized 1-on-1 gelato and ice cream business consultations for a fee (670,000 TZS or as posted in the App).

5.3 Content Access

- Free courses are available immediately upon registration
- Paid courses are accessible after successful payment
- Access to paid content is for your personal, non-commercial use only

5.4 Service Availability

- We strive to provide uninterrupted service but cannot guarantee 100% uptime
- We may modify, suspend, or discontinue any part of the Services at any time
- We will provide reasonable notice of significant changes

6. PAYMENT TERMS

6.1 Pricing

- All prices are listed in Tanzanian Shillings (TZS)
- Prices are subject to change with notice
- Current prices are displayed in the App at the time of purchase

6.2 Payment Methods

Payments are processed securely through Selcom, which accepts:

- M-Pesa
- Tigo Pesa

- Airtel Money
- Other mobile money services supported by Selcom

6.3 Payment Processing

- All payments are final upon successful transaction
- You will receive a confirmation email/SMS after payment
- Payment issues should be directed to our support team

6.4 Taxes

All prices are inclusive of applicable taxes unless otherwise stated.

7. REFUND POLICY

7.1 Refund Eligibility

Refunds may be granted in the following circumstances:

- Technical issues prevent access to purchased content (within 7 days)
- Duplicate purchases made in error (within 24 hours)
- Course content is significantly misrepresented

7.2 No Refund After Access

Once you have accessed a significant portion of a course (25% or more), refunds will not be provided except in cases of technical failure on our end.

7.3 Refund Process

To request a refund:

1. Contact our support team within the eligible timeframe
2. Provide your transaction details and reason for refund
3. Allow 7-14 business days for processing

Refunds will be issued to the original payment method.

8. INTELLECTUAL PROPERTY

8.1 Ownership

All Content in the App, including but not limited to:

- Course materials and videos
- Text, graphics, logos, and images
- Software and technology
- Nelwa's brand and trademarks

...is owned by Nelwa's or our licensors and is protected by Tanzanian and international copyright and intellectual property laws.

8.2 Limited License

We grant you a limited, non-exclusive, non-transferable license to:

- Access and view Content for personal, non-commercial use
- Download materials explicitly marked as downloadable for personal use

8.3 Prohibited Uses

You may NOT:

- Copy, reproduce, or distribute our Content without permission
- Sell, rent, or sublicense access to our courses
- Modify, adapt, or create derivative works from our Content
- Use our Content for commercial purposes
- Share your account credentials with others
- Record, screenshot, or redistribute course videos

8.4 User-Generated Content

If you submit feedback, suggestions, or content to us:

- You grant us a perpetual, worldwide license to use it
- You represent that you own or have rights to the content
- You waive any claims against us for using such content

9. USER CONDUCT

9.1 Acceptable Use

You agree to use the App only for lawful purposes and in accordance with these Terms.

9.2 Prohibited Activities

You shall NOT:

- Violate any laws or regulations
- Infringe on intellectual property rights
- Transmit viruses or malicious code
- Attempt to hack or disrupt the App
- Harass, abuse, or harm other users or our staff
- Create multiple accounts to abuse promotions
- Use automated systems (bots) to access the App
- Engage in fraudulent activities
- Share false or misleading information

9.3 Consequences

Violation of these rules may result in:

- Immediate account termination
- Legal action
- Reporting to authorities

10. DISCLAIMERS

10.1 Educational Purpose

The courses and content are provided for educational purposes only. We do not guarantee business success or specific outcomes from using our educational materials.

10.2 "As Is" Basis

The App and Services are provided "AS IS" and "AS AVAILABLE" without warranties of any kind, either express or implied, including but not limited to:

- Merchantability
- Fitness for a particular purpose
- Non-infringement
- Accuracy or completeness of content

10.3 No Professional Advice

Our content does not constitute professional business, legal, or financial advice. Always consult with qualified professionals for specific advice.

10.4 Internet and Technology

We are not responsible for:

- Internet connectivity issues
 - Device compatibility problems
 - Data charges from your mobile provider
 - Third-party service failures (including Selcom)
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11. LIMITATION OF LIABILITY

11.1 To the Maximum Extent Permitted by Law

Nelwa's shall not be liable for:

- Indirect, incidental, special, or consequential damages
- Loss of profits, revenue, or business opportunities
- Loss of data or information
- Personal injury or property damage

11.2 Maximum Liability

Our total liability to you for any claim arising from these Terms or your use of the App shall

not exceed the amount you paid to us in the 12 months preceding the claim.

11.3 Tanzania Law

Nothing in these Terms limits liability that cannot be limited under Tanzanian law, including liability for:

- Death or personal injury caused by our negligence
 - Fraud or fraudulent misrepresentation
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12. INDEMNIFICATION

You agree to indemnify, defend, and hold harmless Nelwa's, its officers, employees, and agents from any claims, damages, losses, liabilities, and expenses (including legal fees) arising from:

- Your violation of these Terms
 - Your violation of any rights of others
 - Your use or misuse of the App
 - Your violation of any laws or regulations
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13. THIRD-PARTY SERVICES

13.1 Payment Processor

We use Selcom for payment processing. Your use of Selcom is subject to their terms and conditions.

13.2 External Links

The App may contain links to third-party websites or services. We are not responsible for their content, privacy practices, or terms.

14. MODIFICATIONS TO SERVICES AND TERMS

14.1 Service Changes

We reserve the right to:

- Modify or discontinue any feature or service
- Change pricing with reasonable notice
- Update course content and materials

14.2 Terms Changes

We may update these Terms at any time. We will notify you by:

- Email notification
- In-app notification
- Updating the "Last Updated" date

Your continued use after changes constitutes acceptance of the new Terms.

15. TERMINATION

15.1 Your Right to Terminate

You may terminate your account at any time by:

- Contacting our support team
- Using the account deletion feature in the App

15.2 Our Right to Terminate

We may terminate or suspend your account immediately if:

- You breach these Terms
- We suspect fraudulent activity
- Required by law
- You engage in prohibited conduct

15.3 Effect of Termination

Upon termination:

- Your right to access the App ceases immediately

- You lose access to all purchased content
 - No refunds will be provided unless required by law
 - Provisions that should survive termination will remain in effect
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16. DISPUTE RESOLUTION

16.1 Informal Resolution

If you have a dispute, please contact us first at [insert contact email]. We will attempt to resolve it informally.

16.2 Governing Law

These Terms are governed by the laws of the United Republic of Tanzania.

16.3 Jurisdiction

Any disputes shall be resolved in the courts of Tanzania, Dar es Salaam region.

16.4 Arbitration (Optional)

Parties may agree to resolve disputes through arbitration under the Tanzanian Arbitration Act.

17. GENERAL PROVISIONS

17.1 Entire Agreement

These Terms constitute the entire agreement between you and Nelwa's regarding the App and Services.

17.2 Severability

If any provision is found unenforceable, the remaining provisions will remain in effect.

17.3 Waiver

Our failure to enforce any right or provision does not constitute a waiver of that right.

17.4 Assignment

You may not assign or transfer these Terms. We may assign our rights without restriction.

17.5 Force Majeure

We are not liable for delays or failures due to circumstances beyond our reasonable control.

17.6 Language

In case of conflict between translations, the English version prevails.

18. CONTACT INFORMATION

For questions, concerns, or support regarding these Terms or the App:

Nelwa's Gelato & Academy

Email: [insert email address]

Phone: [insert phone number]

Address: Dar es Salaam, Tanzania

Support Hours: [insert hours]

Response Time: We aim to respond within 24-48 hours

19. ACKNOWLEDGMENT

BY USING THE NELWA'S APP, YOU ACKNOWLEDGE THAT:

- You have read and understood these Terms and Conditions
 - You agree to be bound by these Terms
 - You are at least 18 years of age
 - You have the legal capacity to enter into this agreement
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Thank you for choosing Nelwa's! We look forward to supporting your ice cream making journey.

Last Updated: March 1, 2026

Version: 1.0

